

British Railways Act 1968

CHAPTER xxxiv

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ELIZABETH II



1968 CHAPTER xxxiv

An Act to empower the British Railways Board to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands and the completion of certain works; to confer further powers on the Board; and for other purposes.

[26th July 1968]

WHEREAS by the Transport Act 1962 the British Railways Board (hereinafter referred to as "the Board") were established:

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the period now limited for the compulsory acquisition of certain lands and the completion of certain works should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Greater London Council, the clerk of the county council of the county and the town clerk of the county borough within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the British Railways Act 1968.

Interpretation.

2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

1845 c. 20.

“ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;

1863 c. 92.

“ the Act of 1863 ” means the Railways Clauses Act 1863;

1963 c. xviii.

“ the Act of 1963 ” means the British Railways Act 1963;

1965 c. xxi.

“ the Act of 1965 ” means the British Railways Act 1965;

1967 c. xxx.

“ the Act of 1967 ” means the British Railways Act 1967;

“ the Board ” means the British Railways Board;

“ the council ” means the Greater London Council;

“ enactment ” means any enactment, whether public, general or local and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the limits of deviation ” means the limits of deviation shown on the deposited plans;

- “ the Minister ” means the Minister of Transport;
“ the tribunal ” means the Lands Tribunal;
“ the works ” means the works authorised by Part II (Works) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment, as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

3. The following Acts and Parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

The Act of 1845, except sections 7, 8, 9, 19, 20, 22 and 23 thereof, and Part I (relating to the construction of a railway) and Part II (relating to extension of time) of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act—

(a) the expression “ the company ” where used in the said incorporated provisions means the Board;

(b) Works Nos. 6, 7, 8 and 9 and the lines of railway authorised by section 6 (Further works and powers) of this Act shall be deemed to be railways authorised by the special Act:

(ii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act 1950;

1950 c. 39

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act; or

PART I
—cont.

(c) by the provisions of section 45 (For further protection of gas, water and electricity undertakers) of the Act of 1967, as incorporated with this Act.

Application
of Part I of
Compulsory
Purchase Act
1965.

1965 c. 56.

1946 c. 49.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4, 24 (5) and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II
WORKS

Power to
make works.

5.—(1) Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In Greater London—

(Railways at
Clapham
Junction.)

Work No. 1 A railway (1,070 yards in length) wholly in the London borough of Wandsworth commencing by a junction with the railway between Clapham Junction and Battersea Park at a point 320 yards south-west of the bridge carrying the said railway over Culvert Road and terminating by a junction with the railway between Clapham Junction and Victoria at a point 20 yards west of the bridge carrying the last-mentioned railway over Queenstown Road;

Work No. 2 A railway (1,024 yards in length) wholly in the London borough of Wandsworth commencing by a junction with the railway between Clapham Junction and Battersea Park at a point 60 yards south-west of the bridge carrying the said railway over Culvert Road and terminating by a junction with the said railway at a point 10 yards north of the bridge carrying the said railway over Roydon Street;

PART II
—cont.

Work No. 3 A railway (708 yards in length) wholly in the London borough of Wandsworth commencing by a junction with the railway between Clapham Junction and Queens Road, Battersea, at a point 247 yards north-east of the bridge carrying the said railway over Culvert Road and terminating by a junction with the railway between Clapham Junction and Battersea Park at a point 8 yards north of the bridge carrying the last-mentioned railway over Roydon Street;

Work No. 4 A railway (748 yards in length) wholly in the London borough of Wandsworth commencing by a junction with the railway between Clapham Junction and Queens Road, Battersea, at a point 193 yards north-east of the bridge carrying the said railway over Culvert Road and terminating by a junction with the railway between Clapham Junction and Battersea Park at a point 6 yards north of the bridge carrying the last-mentioned railway over Roydon Street;

Work No. 5 A widening (1,743 yards in length) wholly (Widening of in the London borough of Hounslow on the north railway at side thereof of the railway between Ashford and Feltham.) Feltham commencing at a point 27 yards south-west of the bridge carrying Bedfont Road over the said railway and terminating at a point 95 yards south-west of Bedfont Lane at the point at which it is crossed on the level by the said railway;

Work No. 6 A widening in the London borough of (Bridge Southwark on the north side thereof of the bridge widening at carrying the railway between Denmark Hill and Lyndhurst Peckham Rye over Lyndhurst Way; Way, Peckham.)

Work No. 7 A widening in the London borough of (Bridge Southwark on the north side thereof of the bridge widening at carrying the railway between Denmark Hill and Bellenden Peckham Rye over Bellenden Road; Road, Peckham.)

Work No. 8—

(a) A widening in the London borough of (Bridge widening at Southwark on the south-east side thereof of the Rye Lane, Peckham.) bridge carrying the railway between Peckham Rye and Nunhead over Rye Lane;

(b) A widening in the said borough on both sides thereof of the bridge carrying the railway between Peckham Rye and Queens Road, Peckham, over Rye Lane;

PART II
—cont.

(Bridge
widening at
Consort Road,
Peckham.)

(Bridge
lengthening at
Richmond.)

Work No. 9 A widening in the London borough of Southwark on the north side thereof of the bridge carrying the railway between Peckham Rye and Nunhead over Consort Road;

Work No. 10 A lengthening in the London borough of Richmond upon Thames on the north-east side thereof of the bridge carrying Parkshot over the railway between St. Margarets and Richmond.

(2) Subject to the provisions of this Act and within the limits of deviation, the Board may, in carrying out Work No. 10, make junctions with and may alter the line or level of any street or way interfered with, by or contiguous to the said work and may alter and interfere with any steps, walls, gateways, railings, passages, pipes and pavements and may execute any works for the protection of any adjoining land or building:

1878 c. 76.

Provided that, notwithstanding anything in this subsection, the Board shall not alter (as defined in the Telegraph Act 1878) any telegraphic line (as so defined) belonging to or used by the Postmaster General except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the said Act of 1878.

(3) The Board shall erect a good and sufficient fence on each side of the lengthened bridge comprised in Work No. 10.

Further works
and powers.

6.—(1) Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations and according to the levels as shown) the Board may make and maintain the works described in this section with all necessary works and conveniences connected therewith and may exercise the powers hereinafter mentioned, that is to say:—

(a) In Greater London—

(i) In the London borough of Richmond upon Thames—

(A) they may stop up and discontinue the footpath from St. Mary's Grove to Sheendale Road and crossing the railways between Richmond and Kew Gardens and Richmond and North Sheen by means of a footbridge between the points marked "A" and "B" on the deposited plans and may substitute therefor a new footpath and footbridge between the points marked "A", "C", "D" and "E" in the position shown on the deposited plans;

(B) they may stop up and discontinue so much of Wilton Avenue as is situate within the line marked "Portion of public road to be stopped up and appropriated";

- (ii) Partly in the London borough of Greenwich and partly in the London borough of Bexley—

(A) they may stop up and discontinue the footpath crossing the railway between Abbey Wood and Belvedere by means of a footbridge between the points marked “A” and “B” on the deposited plans and may substitute therefor a new footpath and footbridge between the points marked “C”, “D”, “E”, “F” and “G” in the position shown on the deposited plans;

(B) they may stop up and discontinue such part of Harrow Manor Way as is situate within the line delineating the area marked “Portion of public road to be stopped up and appropriated” on the deposited plans;

- (iii) In the London borough of Wandsworth—

they may stop up and discontinue so much of Stewarts Lane and the public footpath known as Stewarts Lane as are situate within the line marked “Portion of public road and footpath to be stopped up and appropriated” on the deposited plans and may substitute therefor a new footpath between the points marked “A” and “B” in the position shown on the deposited plans:

- (b) In the West Riding of the county of York—

- (i) In the parish of Rawcliffe in the rural district of Goole—

(A) they may make and maintain a road commencing by a junction with the road (A.614 (T)) from Thorne to Goole and terminating by a junction with Mill Lane;

(B) they may make and maintain a road commencing by a junction with Mill Lane and terminating by a junction with Bridge Lane;

(C) upon the making and opening for public use of the said roads they may stop up and discontinue between the points marked “A” and “B” and “C” and “D” on the deposited plans such parts of Mill Lane as are crossed on the level by the railway between Wakefield and Goole at the crossings respectively known as Mill Lane crossing and Rawcliffe West crossing;

- (ii) In the parish of Sherburn in Elmet in the rural district of Tadcaster—

they may make and maintain a single line of railway across and on the level of Fenton Lane in the position shown on the deposited plans:

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—cont.

(c) In the county borough of Doncaster—

they may make and maintain a single line of railway across and on the level of Thorn Lane in the position shown on the deposited plans:

(d) In the county of Lancaster—

In the urban district of Kearsley—

they may stop up and discontinue so much of Roscow Road as extends from Stoneclough Road to the south-western boundary of their property at the level crossing known as Roscow Road crossing:

(e) In the county of Westmorland—

In the parish of Orton in the rural district of North Westmorland—

they may stop up and discontinue so much of the road from Scoutgreen to Haybank which is crossed by the railway between Tebay and Shap at the level crossing known as Scoutgreen crossing as lies within the boundaries of their property.

(2) The stopping up under this section of the part of Harrow Manor Way in the London boroughs of Greenwich and Bexley shall not take place until a bridge to carry a new road from Plumstead Marshes to Bexleyheath over the railway has been constructed and opened for public use.

(3) No consent shall be required under section 11 (Stopping up roads and footpaths without providing substitute) of the Act of 1963, as incorporated with this Act, in respect of the stopping up of the portions of—

(a) Wilton Avenue in the London borough of Richmond upon Thames;

(b) Harrow Manor Way in the London boroughs of Greenwich and Bexley;

(c) Stewarts Lane in the London borough of Wandsworth; and

(d) Roscow Road in the urban district of Kearsley;

authorised by this section.

(4) The stopping up under this section of the level crossing known as Mill Lane crossing in the parish of Rawcliffe shall not affect the right of persons on foot to use the same and the Board shall provide and maintain for the convenience of such persons wicket-gates on both sides of the railway at the said crossing.

(5) Notwithstanding anything in section 6 of the Act of 1863 or in section 47 of the Act of 1845, as incorporated with this Act, the Board shall not be required to maintain a lodge at the level crossings in the parish of Sherburn in Elmet and in the county borough of Doncaster referred to in this section and the gates at the said level crossings shall be kept constantly closed across the railway instead of across the road except when engines or carriages passing along the railway shall have occasion to cross the road.

7. As from the passing of this Act, all rights of way over so much of the road from Great Corby to Burnrigg in the parish of Wetheral in the Border rural district in the county of Cumberland as is within the boundaries of the Board's property and is crossed by the railway between Carlisle and Newcastle-upon-Tyne at the level crossing known as Sandy Lane crossing (other than a right for all persons on foot to use the same) shall be extinguished.

As to
Sandy Lane
level crossing,
Wetheral.

8.—(1) In this section—

“the council” means the county council of the administrative county of Lincoln (Parts of Holland) acting on their own behalf or on behalf of the Minister;

As to level
crossing at
Swineshead.

“the diverted road” means any public road constructed by the council in substitution for any part of the road (A.17) from Heckington to Swineshead so as to cross the railway;

“the existing crossing” means the level crossing known as Swineshead station crossing in the parish of Swineshead in the rural district of Boston whereby the railway crosses the road (A.17) from Heckington to Swineshead at Swineshead station;

“the railway” means the railway between Boston and Sleaford;

“traffic sign” has the meaning assigned to it by section 54 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(2) The council and the Board may enter into and carry into effect agreements for the construction of a level crossing for carrying the railway across the diverted road on the level.

(3) The railway may be carried with not more than two lines of rails across and on the level of the diverted road and the provisions of the Act of 1845 and of Part I (relating to construction of a railway) of the Act of 1863 with reference to the crossing of roads on the level shall apply with respect to any level crossing constructed under the powers of this section:

PART II
—cont.

Provided that the Board shall not be required to erect or maintain a lodge at the level crossing and the gates thereat shall be kept constantly closed across the railway instead of across the road except when engines or carriages passing along the railway shall have occasion to cross the road.

(4) Upon the completion and opening for public use of the level crossing for carrying the railway on the level across the diverted road the Board may stop up and discontinue the existing crossing and thereupon all rights of way over and along the existing crossing shall be extinguished.

(5) The Board may, with the consent in writing of the Minister (which consent the Minister may amend or revoke) and subject to such conditions and requirements to be observed by the Board as shall, in the opinion of the Minister, be necessary or desirable for the protection, safety and convenience of the public, provide at or near any level crossing constructed under the powers of this section and maintain and operate so long as such consent continues in force such barriers, lights, traffic signs and automatic or other devices and appliances as may be specified by the Minister.

1839 c. 45.

(6) So long as any such consent as aforesaid continues in force the provisions (in so far as they are inconsistent with any such consent) of the Highway (Railway Crossings) Act 1839, of section 47 of the Act of 1845 and of section 6 of the Act of 1863 shall cease to apply to the said level crossing.

1967 c. 76.

(7) Any traffic sign provided in pursuance of any such consent as aforesaid shall be deemed to be a traffic sign lawfully placed on or near a road in accordance with the provisions of the Road Traffic Regulation Act 1967:

Provided that nothing in this subsection shall impose on a highway authority any liability in respect of a traffic sign provided in pursuance of any such consent.

(8) The council and the Board may enter into and carry into effect agreements with reference to the defraying or making of contributions towards the cost of constructing, maintaining and renewing any level crossing constructed under the powers of this section and with regard to any other matters relating thereto.

(9) Any expenses incurred by the council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

As to level
crossing at
Leverton.

9.—(1) In this section—

“ the council ” means the county council of the administrative county of Nottingham;

“ the diverted road ” means any public road constructed by the council in substitution for any part of the road from North Leverton with Habbleshthorpe to South Leverton so as to cross the railway;

“ the existing crossing ” means the level crossing known as Leverton station crossing in the parish of North Leverton with Habbleshthorpe in the rural district of East Retford whereby the railway crosses the road from North Leverton with Habbleshthorpe to South Leverton at the former Leverton station;

“ the railway ” means the railway between Lincoln and Retford;

“ traffic sign ” has the meaning assigned to it by section 54 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(2) The council and the Board may enter into and carry into effect agreements for the construction of a level crossing for carrying the railway across the diverted road on the level.

(3) The railway may be carried with not more than two lines of rails across and on the level of the diverted road and the provisions of the Act of 1845 and of Part I (relating to construction of a railway) of the Act of 1863 with reference to the crossing of roads on the level shall apply with respect to any level crossing constructed under the powers of this section:

Provided that the Board shall not be required to erect or maintain a lodge at the level crossing and the gates thereat shall be kept constantly closed across the railway instead of across the road except when engines or carriages passing along the railway shall have occasion to cross the road.

(4) Upon the completion and opening for public use of the level crossing for carrying the railway on the level across the diverted road the Board may stop up and discontinue the existing crossing and thereupon all rights of way over and along the existing crossing shall be extinguished.

(5) The Board may, with the consent in writing of the Minister (which consent the Minister may amend or revoke) and subject to such conditions and requirements to be observed by the Board as shall, in the opinion of the Minister, be necessary or desirable for the protection, safety and convenience of the public, provide at or near any level crossing constructed under the powers of this section and maintain and operate so long as such consent continues in force such barriers, lights, traffic signs and automatic or other devices and appliances as may be specified by the Minister.

(6) So long as any such consent as aforesaid continues in force the provisions (in so far as they are inconsistent with any such consent) of the Highway (Railway Crossings) Act 1839, of 1839 c. 45. section 47 of the Act of 1845 and of section 6 of the Act of 1863 shall cease to apply to the said level crossing.

(7) Any traffic sign provided in pursuance of any such consent as aforesaid shall be deemed to be a traffic sign lawfully placed on or near a road in accordance with the provisions of the Road Traffic Regulation Act 1967:

PART II
—cont.

Provided that nothing in this subsection shall impose on a highway authority any liability in respect of a traffic sign provided in pursuance of any such consent.

(8) The council and the Board may enter into and carry into effect agreements with reference to the defraying or making of contributions towards the cost of constructing, maintaining and renewing any level crossing constructed under the powers of this section and with regard to any other matters relating thereto.

(9) Any expenses incurred by the council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

As to certain
level
crossings.

10.—(1) As from the passing of this Act, all rights of way over the level crossings referred to in Part I of Schedule 1 to this Act, other than a right for all persons to use those level crossings as a bridle way or on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings gates for the convenience of persons on horseback or leading horses, and persons on foot.

(2) As from the passing of this Act, all rights of way over the level crossings referred to in Part II of the said schedule, other than a right for all persons to use those level crossings on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings wicket-gates or stiles for the convenience of persons on foot.

1839 c. 45.
1842 c. 55.

(3) The provisions of the Highway (Railway Crossings) Act 1839, of section 9 of the Railway Regulation Act 1842, of section 47 of the Act of 1845 and of sections 5, 6 and 7 of the Act of 1863, and any other provisions to the same or similar effect incorporated with or contained in any enactment relating to any of the level crossings referred to in the said schedule shall cease to apply to those level crossings.

(4) As from the passing of this Act, each of the level crossings referred to in the said schedule (including the gates thereof, other than the gates provided in pursuance of subsections (1) and (2) of this section) shall be deemed to be works provided by the Board at the passing of this Act pursuant to section 68 of the Act of 1845 for the accommodation of the owners and occupiers of the lands adjoining the railway, and, for the purposes of this subsection, such owners and occupiers shall be deemed to include the owners and occupiers of any lands the use of which would have been interrupted if such level crossing had been closed at the passing of this Act.

(5) If any part of the road crossed by the railway at any of the level crossings referred to in the said schedule shall in consequence of the provisions of this section cease to be a road over which the

public have a right of way for the passage of vehicles, the owners and occupiers of the lands abutting on such part shall be deemed to have such rights of passage thereover as shall be necessary to enable them to pass and repass to and from the said lands from and to such level crossing.

(6) Any person who suffers loss by the extinguishment under this section of such private rights of way (if any) as may exist over the level crossings referred to in the said schedule shall be entitled to be paid by the Board compensation to be determined in case of dispute by the tribunal.

11. The Board at their own costs and charges may, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 100 feet of any of the works and the following provisions shall have effect:—

- (1) At least fourteen days' notice shall (except in case of emergency) be given to the owner, lessee and occupier of the house or building intended to be so underpinned or otherwise strengthened;
- (2) Each such notice shall be served in manner prescribed by section 30 of the Compulsory Purchase Act 1965, as 1965 c. 56. applied by this Act;
- (3) If any owner, lessee or occupier of any such house or building shall, within ten days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration;
- (4) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Board may, from time to time after the completion of such underpinning or strengthening, and during the execution of the work in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of that work, enter upon and survey such house or building and, after complying with the foregoing provisions of this section, do such further underpinning or strengthening as they may deem necessary or expedient;
- (5) The Board shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section, provided that the claim for compensation in respect of such loss or damage is made within six months from either the date upon which any such owner, lessee or

PART II
—cont.

occupier first discovers the loss or damage or the date by which he ought reasonably to have discovered it, whichever is the earlier;

1965 c. 56.

- (6) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Board from the liability to compensate under section 10 (2) of the Compulsory Purchase Act 1965, as applied by this Act, or under any other enactment in respect of loss or damage arising from the execution of any works, other than works of underpinning or strengthening authorised by this section;

1961 c. 33.

- (7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Land Compensation Act 1961.

Incorporation of provisions of Acts of 1963 and 1967 relating to works.

12. The following provisions of the Acts of 1963 and 1967 are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 5 (Power to deviate);

Section 7 (Repair of roads where level not permanently altered);

Section 11 (Stopping up roads and footpaths without providing substitute);

Section 12 (Stopping up roads and footpaths in case of diversion or substitution);

Section 13 (Provision as to repair of roads and footpaths);

Section 14 (Power to make agreements with road authorities); and

Section 17 (Use of sewers, etc., for removing water):

The Act of 1967—

Section 12 (Temporary stoppage of roads and footpaths):

Provided that—

1963 c. 38.

- (i) the expression “river board” where used in the said section 17 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act 1963, and shall include the Conservators of the River Thames and the Lee Conservancy Catchment Board and the definition of “river board” in subsection (5) of the said section 17 shall be construed accordingly;

1948 c. 26.

- (ii) for the purposes of the said section 17 of the Act of 1963, as so incorporated, the expression “local authority” in section 144 of the Local Government Act 1948 shall be deemed to include the Greater London Council.

PART III
LANDS

13.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may, subject to the provisions of this Act, enter upon, take and use for the purposes specified in column (3) of Schedule 2 to this Act all or any of the lands referred to in columns (1) and (2) of the said Schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

(4) The Board shall not under the powers of this Act acquire any interest of Richard Shops Limited in the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1 and 8 in the London borough of Southwark.

14.—(1) Notwithstanding anything in this Act, the Board may acquire such easements or rights as they may require for the purpose of constructing, maintaining, renewing and using the works in, under or over any railway, tramway, tramroad, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer without being obliged to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such easements or rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Compulsory Purchase Act 1965, as applied by this Act, shall have effect in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

(2) (a) If, in any case where the Board acquire an easement or right in or under any of the said lands, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and the provisions of the Compulsory Purchase Act 1965, as applied by this Act, shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those provisions.

PART III
—cont.

Disregard of
recent
improvements
and interests.
1965 c. 56.

Period for
compulsory
purchase of
lands or
easements.

Incorporation
of provisions
of Acts
of 1963 and
1967 relating
to lands.

As to
certain
provisions
relating to
railway lands.

(b) Section 15 (Acquisition of part only of certain properties) of the Act of 1967, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

15. In determining any question of disputed compensation under the Compulsory Purchase Act 1965, as applied by this Act, the tribunal shall not take into account—

(a) any works executed, improvement or alteration made, or building erected after 5th December 1967; or

(b) any interest in the land created after the said date; which in the opinion of the tribunal was not reasonably necessary and was executed, made, erected or created with a view to obtaining or increasing the compensation or purchase money.

16. The powers of the Board for the compulsory acquisition of the lands and easements which they are authorised to acquire by this Part of this Act shall cease on 31st December 1971.

17. The following provisions of the Acts of 1963 and 1967 are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 19 (Correction of errors in deposited plans and book of reference);

Section 24 (Extinction of private rights of way); and

Section 28 (As to cellars under streets not referenced);

The Act of 1967—

Section 15 (Acquisition of parts only of certain properties); and

Section 16 (Grant of easements by persons under disability).

18.—(1) As from the passing of this Act, the provisions to which this section applies shall not apply to any lands vested in the Board.

(2) This section applies to any provision in an enactment to the effect that, if at any time after the coming into force of that provision a railway or part of a railway shall be abandoned or given up, or if after the same shall have been completed it shall cease (whether for a specified period or not) to be used or employed as a railway, the lands taken for the purposes of such railway or part of a railway, or over which the same shall pass, shall vest in the owners for the time being of the adjoining lands, being a provision in an enactment relating to an existing or former railway or part of a railway comprised in the undertaking of the Board and not being a provision for the protection or benefit of a named person or the successors of a named person or for the protection of the owner, lessee or occupier of specified lands.

PART IV

PROTECTIVE PROVISIONS

19. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of provisions
of Acts of
1963, 1965
and 1967.

The Act of 1963—

Section 30 (As to works within Metropolitan Police District); and

Section 33 (For protection of gas, water and electricity undertakers):

The Act of 1965—

Section 34 (For protection of Postmaster General):

The Act of 1967—

Section 35 (Crown rights) (except paragraph (b) of subsection (1) thereof);

Section 39 (For protection of sewers of Greater London Council); and

Section 45 (For further protection of certain gas, water and electricity undertakers):

Provided that—

(i) In subsection (2) of the said section 34 of the Act of 1965, as so incorporated, the reference to section 6 (Stopping up of portions of roads and footpaths, etc.) of the Act of 1965 shall be construed as a reference to section 6 (Further works and powers) of this Act;

(ii) In the said section 39 of the Act of 1967, as so incorporated, the expression “sewer” as defined in paragraph (13) thereof shall be construed to include any main used for the conveyance of sewage sludge or sewage effluent;

(iii) In the said section 45 of the Act of 1967, as so incorporated—

(a) the reference in paragraph (2) thereof to section 11 (Underpinning of houses near works) of the Act of 1967 shall be construed as a reference to section 11 (Underpinning of houses near works) of this Act; and

(b) for the reference in paragraph (4) thereof to section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 12 (Incorporation of provisions of Acts of 1963 and 1967 relating to works) of this Act.

PART IV
—cont.

For protection
of Greater
London
Council.

20.—(1) For the protection of the council the following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect.

(2) The Board shall not under the powers of this Act (except in so far as the council may have any interest in the lands numbered on the deposited plans 29 to 52 in the London borough of Wandsworth) acquire compulsorily any interest of the council in any lands or property of the council but the Board may, in accordance with the provisions of this Act, acquire compulsorily such easements and rights in those lands as they may reasonably require for the purpose of constructing, maintaining, renewing and using the works.

(3) Any difference arising between the Board and the council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

As to
metropolitan
roads and
traffic, etc.

21. The following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect:—

1963 c. 33.

(1) In this section “road” means a road which is for the time being a metropolitan road within the meaning of the London Government Act 1963:

(2) The Board shall not without the consent of the council construct any part of the works which will be within 25 feet of the surface of any road, or which will involve interference with any road, except in accordance with plans and sections submitted to and approved by the council, but such approval shall not be unreasonably withheld:

Provided that if within twenty-eight days after such plans and sections have been submitted the council have not approved or disapproved them they shall be deemed to have approved the plans and sections as submitted:

(3) Without prejudice to the generality of paragraph (2) of this section the Board shall construct Works Nos. 1, 2, 3 and 4 in such a way as to enable the council, should they so decide, to widen or otherwise improve the part of Queenstown Road affected by the said Works Nos. 1, 2, 3 and 4 respectively and, for this purpose, the Board shall consult with the council and in the event of the Board and the council failing to reach agreement the matter shall be settled by arbitration:

(4) The works shall be so constructed that no part thereof under a road shall (except with the consent of the council) be so constructed as to interfere with the

PART IV
—cont.

provision of proper means of drainage of the surface of the road or, except in the case of any bridge work, be nearer than 2 feet 6 inches to the surface of the road:

- (5) Before commencing to construct any part of the works or any works or conveniences connected therewith which will involve interference with a road or the traffic in any highway the Board shall consult the council as to the time when such part shall be commenced, and as to the extent of the surface of the road which it may be reasonably necessary for the Board to occupy or the nature of the interference which may be caused to the said traffic in the construction of such part, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the road shall not be occupied by the Board and the said interference with traffic shall not be caused except at the time, to the extent, and in accordance with conditions agreed between the Board and the council, due regard being had in agreeing any conditions to the traffic on the Board's railway:
- (6) At least fourteen days before commencing to make any hole from the surface of any part of any road the Board shall serve notice in writing on the council of their intention to commence the same and such notice shall describe the place at which any such hole is intended to be made and if within fourteen days after the receipt of such notice any objection is made by the council the matter shall (unless otherwise agreed) be settled by arbitration before the making of the hole is commenced, but if no such objection is made the making of the hole may be proceeded with:
- (7) Except with the consent of the council the Board shall not open, or make any permanent openings or any ventilators, air shafts or other similar openings in, or erect or construct any erection or structure above, the surface of the carriageway or footway of any road, and in constructing, maintaining and operating the said openings, ventilators, air shafts or other similar openings the Board shall take all steps which are reasonably practicable to avoid causing a nuisance:
- (8) The Board shall secure that so much of the works as is constructed under or so as to affect any road shall be designed, constructed and maintained so as to carry the appropriate loading for that road recommended at the time of construction of such works by the Minister for

PART IV
—cont.

highway bridges and the Board shall indemnify the council against and make good to the council all expenses which the council may reasonably incur or be put to in the maintenance or repair of any road or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:

- (9) It shall be lawful for the officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works which is in or under any road, or which may affect any road or any property or work of the council, during the execution thereof and the Board shall give to such officer all reasonable facilities for such inspection and, if he shall be of opinion that the construction of such works is attended with danger to any road or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road, the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (10) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road or the access thereto without the consent of the council and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work as aforesaid which may be necessary shall be made by the council or the Board as the council shall think fit and any costs, charges and expenses reasonably incurred by the council in so doing shall be repaid to the council by the Board:
- (11) The Board shall not remove any soil or material from any road except such as must be excavated in the carrying out of the works:
- (12) The Board shall not, except with the consent of the council, deposit any soil, subsoil or materials or stand any vehicle or plant on any road so as to obstruct the use of such road by any person or, except with the like consent, deposit any soil, subsoil or materials on any such road except within a hoarding:

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—cont.

(13) All reasonable costs, charges and expenses incurred by the council in removing any soil, subsoil or materials deposited on any road in contravention of this section shall be a debt due to the council and shall on demand be paid by the Board to the council:

(14) Where any part of any road shall have been temporarily broken up or disturbed by the Board the Board shall make good the subsoil, foundations and surface of such part of the road to the reasonable satisfaction of the council:

Provided that the reinstatement of such part of the road shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the council as soon as reasonably practicable after the completion of the temporary reinstatement and the reasonable costs, charges and expenses incurred by the council in so doing shall be repaid by the Board to the council:

(15) It shall not be lawful for the Board to place any hoardings on any part of any road except for such period as may be necessary and then only in such manner as shall be reasonably necessary and the provisions of the Highways Act 1959 relating to hoardings shall apply 1959 c. 25. to any hoarding erected on any part of any road and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:

(16) The Board shall make compensation to the council for any subsidence of or damage to any road or any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road which may be caused by or in consequence of any act or default of the Board, their contractors, servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter:

(17) Within three months after the completion of any of the works, or such longer period as the council may agree, the Board shall remove or to the reasonable satisfaction of the council demolish or otherwise dispose of all temporary buildings and structures erected at, above or immediately below surface level for the purposes of or in connection with the construction of that work and

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—cont.

shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall, so far as is reasonably practicable, to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:

- (18) As soon as reasonably practicable after the completion of any part of the works which affects the council the Board shall furnish the council with a plan and section showing the position and level of such part of the works as constructed:
- (19) The council may require that the works or works and conveniences connected therewith, so far as they involve any serious interference with the movement of traffic in any highway, shall be carried on so far as reasonably practicable continuously day and night, due regard being had to the traffic on the Board's railway, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (20) The Board shall not, without the consent of the council, which shall not be unreasonably withheld, make any communication between the works and the interior of any building, other than a building wholly used by the Board for transport purposes:
- (21) Any difference arising between the Board and the council under this section shall be settled by arbitration.

For protection
of West
Riding
County
Council.

22. For the protection of the county council of the administrative county of the West Riding of Yorkshire (in this section referred to as "the county council" and "the county" respectively), the following provisions shall, unless otherwise agreed in writing between the Board and the county council, apply and have effect:—

(1) In this section—

"the level crossings" means the level crossings in the parish of Rawcliffe in the rural district of Goole in the county respectively known as Mill Lane crossing and Rawcliffe West crossing;

"the new roads" means the roads in the said parish of Rawcliffe authorised by section 6 (Further works and powers) of this Act, and any works or conveniences connected therewith;

“the signed plan” means the plan signed in duplicate by Archibald William McMurdo on behalf of the Board and by Bernard Kenyon on behalf of the county council, one copy of which has been deposited at the offices of the Board and the other copy at the offices of the county council;

“the specified works” means the new roads and the turning spaces referred to in paragraph (4) of this section:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Board shall not acquire—
 - (a) the lands numbered on the deposited plans 7 and 11 in the said parish of Rawcliffe;
 - (b) the lands numbered on the deposited plans 4 in the said parish of Rawcliffe, except the portion of the said lands shown coloured pink on the signed plan:
- (3) (a) The Board shall construct the new roads to a width of 36 feet between fences measured on the square and with a carriageway 18 feet in width, and the county council shall pay to the Board the amount by which the actual cost incurred by the Board in constructing the new roads as aforesaid exceeds the cost which would have been incurred in constructing the new roads with dimensions equivalent to the existing dimensions of Mill Lane;
- (b) The Board shall not interfere with any land drains situated in the lands numbered on the deposited plans 4 and 8 in the said parish of Rawcliffe, except with the consent of the county council, but such consent shall not be unreasonably withheld:
- (4) Before stopping up and discontinuing the parts of Mill Lane between the points marked “A” and “B” and “C” and “D” on the deposited plans in pursuance of the said section 6, the Board shall on the northern side of each of the level crossings construct a sufficient space for the turning of vehicles:
- (5) Subject to the provisions of any agreement between the Board and the county council, the new roads shall when completed be maintained by and at the expense of the Board for a period of one year from the completion and opening thereof for public use, and at the end of that period shall be maintained at the public expense by the county council:

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Provided that if during the said period of one year the cost of maintaining the new roads exceeds the cost which would have been incurred had the new roads been constructed with dimensions equivalent to the existing dimensions of Mill Lane, such additional cost shall be repaid to the Board by the county council:

- (6) (a) Not less than twenty-eight days before commencing to construct any part of the specified works the Board shall submit to the county council for their reasonable approval plans, sections, specifications and particulars thereof;
- (b) If the county council do not within twenty-eight days after the submission to them of any such plans, sections, specifications and particulars indicate in writing to the Board any objections thereto or make any requirement with reference thereto, they shall be deemed to have approved thereof;
- (7) The Board shall not construct the specified works otherwise than in accordance with such plans, sections, specifications and particulars as may be so approved or, if such approval be refused, as may be settled by arbitration, and the Board shall at all times afford reasonable facilities to the surveyor of the county council for access to the specified works during their construction, and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof;
- (8) Any difference arising between the Board and the county council under this section (other than a difference as to the meaning thereof which does not arise in the course of the arbitration) shall be settled by arbitration.

For further
protection of
West Riding
County
Council.

23. For the further protection of the county council of the administrative county of the West Riding of Yorkshire (in this section referred to as "the county council" and "the county" respectively) the following provisions shall, unless otherwise agreed in writing between the Board and the county council, apply and have effect:—

(1) In this section—

"the level crossing" means the level crossing in the parish of Sherburn in Elmet in the rural district of Tadcaster in the county authorised by section 6 (Further works and powers) of this Act;

"the railway works" means the line of railway across the road authorised by the said section 6 and any works or conveniences connected therewith;

“ the road ” means the road known as Fenton Lane in the said parish of Sherburn in Elmet:

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—cont.

- (2) The Board shall to the reasonable satisfaction of the county council—

(a) at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic on the road the rails of the level crossing and the structures upon which the same rest;

(b) maintain and keep in good condition and repair so much of the road as is for the time being included within the gates constructed on either side of the level crossing:

- (3) (a) Not less than twenty-eight days before commencing to construct any part of the railway works the Board shall submit to the county council for their reasonable approval plans, sections, specifications and particulars thereof;

- (b) If the county council do not within twenty-eight days after the submission to them of any such plans, sections, specifications and particulars indicate in writing to the Board any objection thereto or make any requirement with reference thereto, they shall be deemed to have approved thereof:

- (4) The Board shall not construct the railway works otherwise than in accordance with such plans, sections, specifications and particulars as may be so approved or, if such approval be refused, as may be settled by arbitration, and the Board shall at all times afford reasonable facilities to the surveyor of the county council for access to the railway works during their construction and shall supply him with all such information as he may reasonably require with regard to the railway works or the method of construction thereof:

- (5) Before commencing to construct any part of the railway works the Board shall consult the county council as to the time when such part shall be commenced and as to the extent of the surface of the road that it may be reasonably necessary for the Board to occupy in the construction of such part and as to the conditions under which such part shall be constructed so as to ensure the safety of and to reduce so far as possible inconvenience to the public and such part shall not be constructed and the surface of the road shall not be occupied by the Board except at such time, to such extent and in accordance with such conditions as may be

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—cont.

agreed or, in default of agreement, as may be determined by arbitration to be reasonable:

- (6) Any difference arising between the Board and the county council under this section (other than a difference as to the meaning thereof which does not arise in the course of the arbitration) shall be settled by arbitration.

For protection
of Hounslow
Corporation.

24. For the protection of the mayor, aldermen and burgesses of the London borough of Hounslow (in this section referred to as “the corporation”), the following provisions shall, unless otherwise agreed in writing, apply and have effect:—

- (1) In this section—

“the existing subway” means the public subway between the footpath giving access to Southville Road and the footpath giving access to Guildford Avenue under the railway between Ashford and Feltham;

“the proposed subway” means the existing subway as proposed to be extended by the construction of Work No. 5:

- (2) In the construction of Work No. 5 the Board—

(a) shall not reduce the headroom in the existing subway; and

(b) shall, notwithstanding the provisions of section 5 (Power to deviate) of the Act of 1963 as incorporated with this Act, provide a headroom in the proposed subway of not less than the headroom in the existing subway:

- (3) In the construction of Work No. 5 the Board—

(a) shall provide access to the northern end of the proposed subway consisting of a slope, the gradient of which shall not exceed 1 in 12.2;

(b) shall not alter the existing subway to render the gradient of the access to the southern end of the proposed subway greater than 1 in 14.7.

For protection
of Richmond
upon Thames
Corporation.

25. For the protection of the mayor, aldermen and burgesses of the London borough of Richmond upon Thames (in this section referred to as “the corporation”), the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect:—

- (1) (a) In this section—

“authorised officer” means the engineer, surveyor, or other authorised officer of the corporation;

“ highway ” means a highway vested in or repairable or maintained by the corporation;

“ sewer ” means a sewer vested in or under the jurisdiction or control of the corporation;

- (b) The works to which this section applies are so much of Work No. 10 and of the new footpath and footbridge crossing the railways between Richmond and Kew Gardens and Richmond and North Sheen between the points marked “ A ”, “ C ”, “ D ” and “ E ” shown on the deposited plans, and the works and conveniences connected therewith authorised by this Act, as may affect a highway, watercourse or sewer:
- (2) Wherever in this section provision is made with respect to the consent of the corporation, such consent shall be in writing and may be given under the hand of the town clerk subject to such reasonable terms and conditions as the corporation may require, but shall not be unreasonably withheld:
- (3) (a) Before commencing to construct any part of the works to which this section applies the Board shall—
- (i) submit to the corporation for their reasonable approval plans and particulars relating thereto; and
 - (ii) consult the corporation as to the time when such part shall be commenced, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with conditions agreed between the Board and the corporation or in default of agreement settled by arbitration;
- (b) The plans and particulars to be submitted to the corporation for the purposes of this section shall be plans, drawings, sections and particulars which shall describe the position and manner in which, and the level at which, the works to which they relate are proposed to be constructed and shall so far as practicable accurately describe the position of all sewers within the limits of deviation of the said works (for which purpose the corporation shall allow the Board access to plans in their possession and to any of their sewers to enable the Board to obtain information with respect thereto) and shall comprise detailed drawings of any alteration which the Board may propose to make in any sewer:

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- (4) No part of the works to which this section applies shall be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the corporation under paragraph (3) of this section (or, if such approval be refused, as may be settled by arbitration) and in accordance with such reasonable conditions as may be imposed by the corporation:

Provided that if within twenty-eight days after the submission to them of plans and particulars under paragraph (3) of this section the corporation do not signify to the Board their approval thereof, with or without conditions, or their disapproval thereof, they shall be deemed to have approved them unconditionally:

- (5) The corporation may require such modifications to be made in the said plans and particulars as may be reasonably necessary to secure their drainage system against interference or risk of damage and to provide and secure proper and convenient means of access to the sewers:
- (6) In the execution of the works to which this section applies the Board shall comply with and conform to all orders, directions and regulations which the corporation may reasonably make and shall provide new, altered or substituted works in such manner as the corporation shall reasonably require for the proper protection of, and for preventing injury to, obstruction of, or obstruction of the access to, any sewer and shall indemnify the corporation against all expenses to be occasioned thereby:
- (7) All such new, altered or substituted works shall where so required by the corporation be done by or under the direction, superintendence and control of an authorised officer, at the cost in all respects of the Board and all costs, charges and expenses to which the corporation may be put by reason of such works, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise shall be paid to the corporation by the Board:
- (8) It shall be lawful for an authorised officer at all reasonable times to enter upon and inspect any part of the works to which this section applies, or any such new, altered or substituted works, in, under or affecting any highway or which may affect any property of the corporation during the execution thereof, and the Board shall give to such officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any highway or to any sanitary convenience, refuge.

sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:

- (9) When any such new, altered or substituted works or any works for the protection of any sewer connected therewith shall be completed under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the corporation as their existing sewers:
- (10) Work No. 10, so far as it involves any serious interference with the movement of traffic in any highway, shall, after the commencement thereof, be carried on as expeditiously as reasonably practicable, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (11) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested, or to be vested, in the corporation in relation to sewers, but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (12) The corporation may require the Board, in constructing the works to which this section applies, to make any reasonable deviations within the limits of deviation of such works from the line or levels proposed by the Board for the purpose of avoiding injury or risk of injury to the sewers of the corporation, and the Board shall in constructing such works deviate accordingly:
- (13) At least fourteen days before commencing any vertical borings from the surface of any part of any highway the Board shall serve notice in writing on the corporation of their intention to commence the same, and such notice shall describe the place or places at which such borings are intended to be made, and if within fourteen days after the receipt of such notice any objection is made by the corporation the matter shall (unless otherwise agreed) be settled by arbitration before the boring is commenced, but if no such objection is made the said borings may be proceeded with:
- (14) The Board shall secure that so much of the works to which this section applies as is constructed so as to

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affect any highway shall be designed, constructed and maintained so as to carry the appropriate normal loading recommended by the Minister for highway bridges at the time of the construction of the railway, and the Board shall indemnify the corporation against, and make good to the corporation, all expenses which the corporation may reasonably incur or be put to in the maintenance or repair of any highway or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:

- (15) The Board shall, if reasonably so required by the corporation, provide and maintain to the reasonable satisfaction of the corporation, during such time as the Board may occupy any part of a highway for the purpose of the construction of any part of the works to which this section applies, temporary bridges and temporary ramps for vehicular traffic or pedestrian traffic, or both, over any part of the works or in such other position as may be necessary to prevent interference with the flow of traffic in any highway:
- (16) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work of the corporation, or under the control of or repairable by them, or the access thereto, without the consent of the corporation, and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board, as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:
- (17) The Board shall not remove any soil or material from any highway except such as must be excavated in the carrying out of the works to which this section applies:
- (18) If any extra expense be incurred by the corporation for the repair of any highway by reason of the diversion thereto of additional traffic in consequence of the making or construction of the works to which this section applies, the Board shall repay the amount of such expenses to the corporation, provided that prior notice of the diversion has been given to the Board:

- (19) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway, except within a hoarding:
- (20) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (21) Where any part of any highway shall have been temporarily broken up or disturbed by the Board, the Board shall make good the subsoil, foundations and surface of such part of the highway to the reasonable satisfaction of the corporation:
- Provided that the reinstatement of such part of the highway shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the corporation and the reasonable cost incurred by the corporation in so doing shall be repaid by the Board to the corporation:
- (22) It shall not be lawful for the Board to place any hoardings on any part of the highway except for such period as may be necessary, and then only in such manner as shall be reasonably necessary, and the provisions of the Highways Act 1959 relating to hoardings shall apply 1959 c. 25. to any hoarding erected on any part of any highway, and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (23) The Board shall be responsible for and make good to the corporation all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the corporation—
- (a) in respect of damage to property of the corporation by reason of the construction of any work to which this section applies, or the failure thereof; or
- (b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors, agents or others whilst engaged upon the construction of any such work;

PART IV
—cont.

and the Board shall effectively indemnify and hold harmless the corporation from and against all claims and demands arising out of, or in connection with the construction of, any such work or any such act or omission as aforesaid, and the fact that any work or thing may have been done by the corporation on behalf of the Board, or in accordance with plans and particulars approved by the corporation, or in accordance with any requirement of, or condition, order, direction or regulation made by, the corporation or under the superintendence of an authorised officer, shall not (if it was done without negligence on the part of the corporation or of any person in their employ or of their contractors or agents) excuse the Board from any liability under this section:

Provided that the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (24) Within three months after the completion of any work to which this section applies, or such longer period as the corporation may agree, the Board shall remove or to the reasonable satisfaction of the corporation demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of or in connection with the construction of such work, and shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:
- (25) As soon as reasonably practicable after the completion of any work to which this section applies, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:
- (26) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of the works in the London borough of Richmond upon Thames, and subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person, any such objects shall be deposited with the corporation as the property of the corporation.

- (27) Any difference arising between the Board and the corporation under this section shall be settled by arbitration.

PART IV
—cont.

PART V MISCELLANEOUS

26.—(1) In this section—

“the Secretary of State” means the Secretary of State for Defence;

“the railway” means so much of any railway of the Board as may at any time be leased to the Secretary of State by the Board.

As to
railways
leased to
Secretary of
State for
Defence.

(2) The Board and the Secretary of State may enter into and carry into effect agreements providing for the leasing to the Secretary of State of the railway on such terms and conditions as may be agreed and any such agreement may provide for the transfer to the Secretary of State during the term of any such lease as aforesaid of all or any of the powers and obligations of the Board in respect of the railway.

27. Notwithstanding anything in the proviso to section 5 (Power to cross roads on the level) of the North Eastern Railway Act 1893, the Board shall not be required to maintain a footbridge or subway at the road numbered 6 in the parish of Bedlington authorised to be crossed on the level by Railway No. 2 referred to in the said section, and all public rights of way over the existing footbridge are hereby extinguished.

As to
footbridge or
subway at
Bedlington.
1893 c. lxxiv

28.—(1) The period now limited by the Act of 1965 for the compulsory purchase of the lands authorised to be acquired by section 43 (Power to acquire lands) of the British Transport Commission Act 1959, for the purposes of Works Nos. 28, 29, 30 and 31 authorised by Part II (Works) of the said Act of 1959, is hereby extended until 31st December 1971.

Extensions of
time.

(2) The period now limited by the British Transport Commission Act 1962 for the completion of Railways Nos. 1 and 2 authorised by section 5 (Power to Company to make railways) of the London and North Eastern Railway Act 1924, as revived by section 45 (Revival of powers for construction of certain railways) of the London and North Eastern Railway (London Transport) Act 1936, is hereby extended until 31st December 1974.

1962 c. xlii.

1924 c. liii.

1936 c. cxxvi

(3) In this section the word “lands” includes any easement or rights in, under or over land authorised to be acquired by the enactments referred to in this section.

PART V
—cont.

Saving for
town and
country
planning.

1962 c. 38.

Arbitration.

1965 c. 56.

Costs of
Act.

29. The provisions of the Town and Country Planning Act 1962, and any restrictions or powers thereby imposed or conferred, in relation to land, shall apply and may be exercised in relation to any land, notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

30. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

31. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 10.

THE LEVEL CROSSINGS REFERRED TO IN SECTION 10 (AS TO CERTAIN LEVEL CROSSINGS) OF THIS ACT

PART I

In the county of Cumberland—

In the parish of Millom Without in the rural district of Millom—

The level crossing known as Underhill crossing whereby the road from Marshside to Underhill Cottages is crossed by the railway between Green Road and Millom stations.

In the county of Oxford—

In the parish of Tackley in the rural district of Chipping Norton—

The level crossing known as Tackley crossing whereby the road from Nethercott to Kirtlington is crossed by the railway at Tackley halt.

In the parish of Gosford and Water Eaton in the rural district of Ploughley—

The level crossing known as Water Eaton crossing whereby the road from Water Eaton Lane to Gosford and Water Eaton is crossed by the railway between Oxford and Islip stations.

In the parish of Kidlington in the rural district of Ploughley—

The level crossing known as Roundham crossing whereby the road from Begbroke Lane to Lyne Road is crossed by the railway between Oxford station and Tackley halt.

In the county of Warwick—

In the parish of Wootton Wawen in the rural district of Stratford-on-Avon—

The level crossing known as Edstone crossing whereby the road from Edstone to Bearley is crossed by the railway between Bearley and Claverdon stations.

PART II

In the county of Cumberland—

In the parish of Bootle in the rural district of Millom—

The level crossing known as Middleton Place crossing whereby the road from Eskmeals to Middleton Place is crossed by the railway between Ravenglass and Bootle (Cumberland) stations.

SCH. 1
—cont.

In the county of Lancaster—

In the urban district of Grange—

The level crossing known as Bailey Lane level crossing whereby the unnamed road from the Esplanade to the promenade is crossed by the railway between Grange-over-Sands and Kents Bank stations.

In the urban district of Ormskirk—

The level crossing known as Ferrit Lane crossing whereby Culvert Lane is crossed by the railway between Hoscar and Parbold stations.

In the parish of Scarisbrick in the rural district of West Lancashire—

The level crossing known as Drummersdale crossing whereby the road from Wholesome Lane to Drummersdale Lane is crossed by the railway between Bescar Lane and New Lane stations.

In the county of Lincoln (Parts of Holland)—

In the parish of Pinchbeck in the rural district of Spalding—

The level crossing known as Moortoft Lane crossing whereby Moortoft Lane is crossed by the railway between Spalding and Surfleet (closed) stations.

SCHEDULE 2

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 13 (POWER TO ACQUIRE Section 13.
LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)	Purposes for which the lands may be acquired or used (3)
In Greater London—		
London borough of Southwark	1, 6 to 25	To carry out alterations and improvements to the railways between Denmark Hill and Nunhead and East Dulwich and Queen's Road, Peckham respectively.
London borough of Southwark	31	To carry out alterations and improvements to the railway between Nunhead and Crofton Park.
London borough of Richmond upon Thames	4, 11 to 20 22 to 25	To carry out alterations and improvements to the railway between St. Margaret's and North Sheen.
London borough of Richmond upon Thames	26 to 35	To carry out alterations and improvements to the railway between Feltham and Hounslow.
London borough of Hounslow	28	To carry out alterations and improvements to the railway between Feltham and Hounslow.
London borough of Bexley	4	To carry out alterations and improvements to the railway between Plumstead and Belvedere.
London borough of Wandsworth	74 to 76	To carry out alterations and improvements to the railway between Clapham Junction and Victoria.
London borough of Lewisham	1	To carry out alterations and improvements to the railway between Nunhead and Crofton Park.
In the West Riding of the County of York—		
Parish of Rawcliffe in the rural district of Goole	2	To provide a proposed road with a means of access to the road (A.614 (T)) from Thorne to Goole.